

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-08

FORMUKLEEN, INC.,

Complainants

v.

TOP SHIPPING SYSTEMS, CORP.,

Respondent.

**RESPONDENT'S NOTICE OF CONTINUED PRODUCTION AND SUPPLEMENTAL
COMPLIANCE WITH APRIL 1, 2026 ORDER**

Respondent Top Shipping Systems Corp. ("TSS"), appearing pro se, respectfully submits this Notice to advise the Presiding Officer of its continued good-faith efforts to comply with the April 1, 2026 Order as to Requests for Production Nos. 4 and 7.

I. Acknowledgment of Order Scope

Upon further review of the April 1, 2026 Order, and in an abundance of caution, TSS is supplementing its production to encompass communications and records relating to all FormuKleen shipments managed by TSS. TSS's prior production was conducted in good faith based on a reasonable reading of RFP Nos. 4 and 7 as directed at communications and records relating to the subject shipments and the outstanding balance between the parties. Given that the underlying dispute concerns two specific containers and amounts allegedly owed in connection with those shipments, TSS interpreted the requests accordingly. Upon further review of the Order's full scope and the Presiding Officer's reasoning, TSS is supplementing its production in an abundance of caution to ensure full compliance.

II. Status of Production

Without waiving any prior objections, TSS notes that supplementing production to encompass all shipments involves a significant number of additional documents and communications.

TSS is a small business currently operating with reduced staffing, which further affects the pace at which this volume of material can be reviewed and produced.

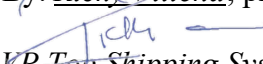
Notwithstanding the foregoing, TSS is making every effort to produce all responsive communications and records to the best of its ability and is not withholding documents. TSS is providing this supplemental production via secure Dropbox link to opposing counsel in separate correspondence. Production is ongoing and TSS will continue to identify, compile, and produce any additional responsive materials to the best of its ability prior to the May 22, 2026 discovery cutoff. TSS is committed to full compliance with the April 1, 2026 Order. As stated in Respondent's May 18 Response, TSS committed to promptly producing any additional responsive materials identified, and this supplemental production fulfills that commitment.

III. Good Faith

TSS respectfully submits that this supplemental production demonstrates its genuine intent to comply fully with the April 1, 2026 Order. TSS acknowledges that this proceeding involves complex legal and procedural issues that are difficult to navigate without legal representation. TSS is actively seeking replacement counsel familiar with Federal Maritime Commission proceedings and will advise the Presiding Officer promptly upon retention. In the meantime, TSS is doing everything within its ability as a small business operating pro se to meet its obligations and produce all responsive documents in good faith.

Respectfully submitted,

By: Ricky Villena, pro se


VP Top Shipping Systems Corp

12480 NW 25th Street, Ste. 100

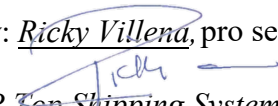
Miami, Florida 33182

ricky.villena@tsscorp.us

CERTIFICATE OF SERVICE

I hereby certify that on May 20, 2026, I have served the foregoing to all parties of record in this proceeding via electronic mail.

By: Ricky Villena, pro se


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